Superior Court of the State of California
County of Orange

Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesseltine

Hearing Date and Time: August 13, 2026, at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: **Civil Court Reporter Pooling**. For additional information regarding court reporter availability, please visit the court's website at **Court Reporter Interpreter Services**.

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case. **The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.**

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

https://www.occourts.org/media-relations/civil.html before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at **https://www.occourts.org/media-relations/aci.html**. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at **https://www.occourts.org/media-relations/aci.html**. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

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#	Case Name Case Number	Tentative
1.	***Tanksley vs. Thomas*** *2021-01196198*	Before the court is the hearing on the order to show cause why an order for sale of dwelling should not issue relating to property located at 25238 Clemens Lane, Lake Forest, California 92630 and owned by judgment debtor Craig Allen Thomas (Debtor). The order to show cause was entered on June 15, 2026, based on the application of judgment creditor Joseph Crevier (Creditor). For the reasons set forth below, the hearing is continued to **THURSDAY, OCTOBER 29, 2026, AT 2:00 P.M., IN DEPARTMENT C23**. The court previously found Creditor's application satisfied the statutory requirements and therefore the court entered the order to show cause and instructed Creditor to give notice as required by Code of Civil Procedure section 704.770. (Code Civ. Proc., §§ 704.750, 704.760, 704.770; see ROA 236.) Section 704.770 requires the application, order to show cause, and a notice of hearing in the form prescribed by the Judicial Council be served by mail or personally on the judgment debtor at least 30 days before the hearing, and also must be personally served on the occupant(s) of the dwelling or, if there is no occupant present at the time service is attempted, posted in a conspicuous place at the dwelling. (Code Civ. Proc., § 704.770, subd. (b)(1), (2).)

		Here, no proof of service has been filed showing compliance with Code of Civil Procedure section 704.770. The hearing therefore is **CONTINUED** to the date and time set forth above. All parties must be served as required by Code of Civil Procedure section 704.770. Creditor is ordered to file a proof of service at least 10 days before the next hearing date. Failure to do so may result in the order to show cause being vacated. Creditor is ordered to give notice of this ruling.
2.	***Jessica Hernandez vs. AMCP Holdings*** *2025-01475407*	Before the court is the continued hearing on the order to show cause as to the sale of the dwelling at 17391 Breda Lane, Huntington Beach, California 92649 that was issued on the application of assignee and judgment creditor 1st Integrity Capital of America LLC (Creditor). Based on the application, the court issued to order to show cause on May 6, 2025, and set the hearing on the order for June 12, 2025. Prior to that date, the parties submitted a stipulation and order to continue the hearing to August 21, 2025, while they discussed a possible resolution. Prior to the continued hearing date, Creditor submitted a status report explaining the property was jointly owned by defendant and judgment debtor Chris Pitts (Debtor) and his spouse, Debtor and his spouse are engaged in ongoing dissolution of marriage proceedings, and the judge in the dissolution of marriage proceeding indicated ownership of the property must be resolved in that case before any sale can be ordered. Accordingly, on August 21, 2025, the court ordered the hearing on the order to show cause continued to this date to wait further proceedings in the dissolution case. Since that time, the court has continued the hearing on the order to show cause two additional times to allow the family law case to proceed. The court last conducted a hearing on the order to show cause of June 4, 2026. At that time, Creditor reported the family law trial had commenced, but was then continued for further evidence regarding this property. Since the last hearing, the court has not received any further updates from the parties. It appears, however, the family law court completed the trial on June 30, 2026, and issued a ruling awarding the property at issue to Debtor's spouse as her sole and separate property. Creditor's counsel is ordered to appear at the hearing (remote appearance is acceptable) to confirm the status of the family law matter and address how the court should

		proceed with respect to this order to show cause, including whether the court should vacate the order to show cause in light of the family law court ruling.
3.	***City of Buena Park vs. Forsyth*** *2026-01546372*	Before the court is the continued hearing on the petition for appointment of receiver filed by petitioner City of Buena Park (Petitioner) regarding the real property located at 5832 Darlington Avenue, Buena Park, California 90621 (Property). As more fully set forth below, the motion is **GRANTED**. (Health & Saf. Code, § 17980.7(c).) Petitioner has demonstrated there are significant and ongoing housing and building code violations at the Property, which pose a serious risk to the health and safety of any occupants and the public. (See Zapien Decl., ¶¶ 10-14, 21-23 and Exhs. A-F.) Petitioner also has demonstrated the owner of the Property, respondent Richard L. Forsyth (Respondent), has been afforded a reasonable opportunity to correct the conditions at the Property but has failed to do so. Petitioner issued multiple citations and letters to Respondent between 2018 and 2025 regarding the dangerous conditions at the Property. (See Zapien Decl., ¶¶ 8-21.) Despite the passage of seven years, Respondent has failed to cure the violations at the Property. The court finds Petitioner's nominated receiver, Amanda R. Wheeland, has the demonstrated capacity and expertise to develop and supervise a viable financial and construction plan for the satisfactory rehabilitation of the Property. (Health & Saf. Code, § 17980.7(c)(2)). Notice of this petition was duly given to Respondent, but no response from Respondent has been filed. The court received an opposition to the petition from respondent Bank of America, N.A., as Successor in Interest to Countrywide Bank, FSB (Bank of America). Bank of America does not dispute the Property is in substandard condition and endangers the health and safety of its occupants and the surrounding residents. It appears Bank of America objects to the court issuing an order that the receiver's lien would take priority over Fannie Mae's lien on the Property, claiming federal law would preempt and prevent the granting of such a super-priority lien. Bank of America has offered no authority specifically addressing receiverships for substandard buildings or holding a trial court is barred from appointing receivers pursuant to California Health and Safey Code section 17980.7 to abate a substandard building where a federally backed loan encumbers the property. Similarly, although it is clear the

		court has the authority under California law to authorize a super-priority lien (see, e.g., *County of Sonoma v. Quail* (2020) 56 Cal.App.5th 657, 664), Petitioner has not cited any authority requiring the court to grant super-priority status to any lien the receiver obtains. Given Petitioner has shown a receiver for the Property is warranted and Bank of America has offered no authority specifically establishing the court is unable to appoint a receiver in this instance, the court will **GRANT** the petition to appoint a receiver. The court hereby appoints Amanda R. Wheeland to act as receiver over the Property. Ms. Wheeland is authorized to exercise the powers and duties enumerated in Health and Safety Code section 17980.7, subdivision (c)(4). The court, however, declines to issue an order pertaining to the priority of liens at this time. Given Petitioner's representation in the reply that the issue of priority can likely be resolved by the parties, the parties are **ORDERED** to meet and confer on the issue of priority. Petitioner is cautioned the receiver ultimately may not be granted a super-priority lien if the parties are unable to reach an agreement. Similarly, Bank of America is cautioned the receiver may later be granted super-priority status if the parties are unable to reach an agreement. The court reserves the ability to determine the priority of any certificate on a future motion. The court will set a status conference at which time the parties shall inform the court of the progress of their discussions. At the status conference, the court also will expect an update regarding the status of the Property. The receiver is ordered to file and serve a status report at least 10 days before the status conference. The status conference is scheduled for **Monday, October 12, 2026, at 9:30 a.m., in Department C23**. Counsel for Petitioner is to submit a proposed order in accordance with this ruling. Counsel for Petitioner is ordered to give notice.
4.	***Knypstra vs. Sheldon*** *2026-01552256*	**CONTINUED TO OCTOBER 29, 2026**, as stated in ex parte application and order signed by the court on August 2, 2026
5.	***Reed's Inc. vs. California***	Before the court is the petition of petitioner Reed's, Inc. (Petitioner) to confirm arbitration award. Respondent California Custom Beverage, LLC (Respondent) filed an opposition to the petition in which Respondent asks the

	Custom Beverage, LLC *2026-01574958*	court to deny the petition and vacate the Revised Final Award issued by arbitrator Hon. Richard Aronson (Ret.) on May 18, 2026. As more fully set forth below, the petition to confirm the arbitration award is **GRANTED**, and the request to vacate the award made in the opposition is **DENIED**. Any party to an arbitration in which an award has been made may petition the court to confirm, correct, or vacate that award. (Code Civ. Proc., § 1285.) A petition to confirm an arbitration award must "(a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement. [¶] (b) Set forth the names of the arbitrators. [¶] (c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any." (Code Civ. Proc., § 1285.4.) Pursuant to Code of Civil Procedure section 1286, if a petition to confirm an arbitration award is duly served and filed, "the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." Here, Petitioner duly served and filed its petition to confirm the arbitration award, and that petition complies with Code of Civil Procedure section 1285.4 by attaching a copy of the parties' arbitration agreement, setting forth the name of the arbitrator—Hon. Richard Aronson (Ret.)—and attaching a copy of the arbitration decision and final award. Accordingly, the award must be confirmed unless Respondent's request to vacate establishes a ground for vacating the award. Absent proof of a statutory ground for vacating or correcting an award, arbitration awards are immune from judicial review in proceedings to challenge or enforce the award. (*Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 12-13 (*Moncharsh*); *Zazueta v. County of San Benito* (1995) 38 Cal.App.4th 106, 110.) As a result, the merits of the controversy generally are not reviewable by the court when a petition to confirm or vacate is presented. (*Moncharsh*, *supra*, 3 Cal.4th at p. 11.) Thus, courts will not review the sufficiency of the evidence to support the award. (*Morris v. Zuckerman* (1968) 69 Cal.2d 686, 691 (*Morris*).) Nor will courts pass upon the validity of the arbitrator's reasoning. The court simply may not substitute its judgment for that of the arbitrator. (*Morris*, *supra*, 69 Cal.2d at p. 691; *Department of Pub. Health of City &*

		County of San Francisco v. Service Employees Int'l Union, Local 790 (1989) 215 Cal.App.3d 429, 433, fn. 4.) Generally, errors of law committed by the arbitrator, no matter how gross, are not grounds for challenging the arbitrator's award under California law. (*Moncharsh*, *supra*, 3 Cal.4th at p. 11; *Richey v. AutoNation, Inc.* (2015) 60 Cal.4th 909, 916.) Here, Respondent argues the court should vacate the award because the Arbitrator violated Respondent's due process rights by (1) wrongly relying on a post-evidence hearsay statement in a revised, unsworn expert report Respondent never got to cross-examine; (2) allowing the arbitrator's expert to improperly communicated directly with opposing counsel during the drafting period and then issued a report suggesting Respondent pay Petitioner six times the amount Petitioner was seeking; and (3) impermissibly delegating his role as trier of fact to the accountant who the Arbitrator treated as a percipient witness but was never cross-examined. (Opp. at p. 3.) Respondent fails to identify or explain how any of these contentions satisfy a single statutory ground for vacating an arbitration award. Rather, Respondent simply states the foregoing three items are "due process arguments that CCP §1286.2(a)(1), (a)(2), and (a)(3) were written to address. Respondent does not state what these three statutory grounds for vacating an arbitration award are, let alone explain how or why these statutory grounds apply in this case. Code of Civil Procedure section 1286.2, subdivision (a)(1) allows a court to vacate an arbitration award when it is shown the award was procured by corruption, fraud or other undue means. Section 1286.2, subdivision (a)(2) allows a court to vacate an arbitration award when it is shown there was corruption in any of the arbitrators. Finally, section 1286.1, subdivision (a)(3) allows a court to vacate an arbitration award when it is shown the rights of the party were substantially prejudiced by misconduct of a neutral arbitrator. Respondent does not cite any authority applying any of these three statutory grounds nor does Respondent identify or apply the legal standards applicable to any of these three grounds. Moreover, Respondent makes countless factual assertions and arguments in the opposition, but largely fails to cite to any evidence to support the assertions. For example, Respondent asserts the Arbitrator granted Petitioner's request for an accounting over Respondent's

		objection without any citation to support that assertion. Similarly, Respondent argues the appointed accountant had been trying to court Petitioner's business for several years, but neither Petitioner nor the accountant disclosed that to Respondent and the Arbitrator decided it was not big deal. To support this assertion, Respondent cites to the accountant's entire report without any pinpoint cite and cites to nothing by the Arbitrator. Respondent goes on to make numerous representations about errors the accountant made and statements both the accountant and Arbitrator made in their respective report and award. Respondent, however, fails to cite any evidence to show the inaccuracies and other issues. It is not sufficient to Respondent to make conclusory accusations; Respondent must cite the court to evidence to establish the accusations are true. Respondent has not done so and therefore failed to meet its burden on its request to vacate the arbitration award. Moreover, Respondent fails to disclose or acknowledge many of the points Petitioner has made in the reply, including that Respondent agreed to, shaped, and benefitted from the accounting procedure it now attacks. In short, Respondent's opposition is bereft of any authority to support or citations to evidence supporting its challenges to the award. Respondent attaches hundreds of pages to its counsel's declaration, but the minimal citations to those pages is of no assistance. Respondent has failed to show its opposition is anything more than a challenge to the sufficiency of the evidence and reasoning of the Arbitrator which cannot be reviewed on a petition to confirm or vacate an arbitration award. Accordingly, the petition to confirm the award is **GRANTED**, and the request to vacate the award included in the opposition is **DENIED**. Petitioner may submit a proposed judgment, and any requests for costs or attorney fees will need to be made pursuant to an appropriate post-judgment procedure, such as potentially a memorandum of costs or attorney fee motion, because no evidence is submitted at this time to support an award of either fees or costs. Petitioner's counsel is ordered to give notice of this ruling.
6.	***In Re: Crestpoint Capital, LLC*** *2026-01559773*	Before the court is the continued hearing on the petition of petitioner Crestpoint Capital LLC (Petitioner) for court approval of proposed transfer of certain periodic payments real party in interest and payee Samantha Mena (Payee) is scheduled to receive under a structured settlement. As more fully set forth below, the petition is **DENIED** at the

		request of Payee and for Petitioner's failure to provide the required supplemental information. In these proceedings, Petitioner seeks court approval for Payee to transfer four periodic payments including one semiannual payment of $10,000 due on January 1, 2027, one lump sum payment of $25,000 due on May 3, 2027, one lump sum payment of $50,000 due on May 3, 2031, and one lump sum payment of $60,000 due on May 3, 2034. These payments total $145,000 and have a discounted present value of $113,946.41. In exchange for transferring the right to receive these monthly payments, Payee would receive a present, lump sum payment of $61,799.25, which represents 54.24 percent of the payments' present value and equates to an equivalent interest rate of 19.96 percent if Payee were to take a loan. The court first heard the petition on June 11, 2026. At that time, Payee appeared and reported she no longer was interested in proceeding with the transaction. There was no appearance by Petitioner. Prior to the hearing, the court posted a tentative ruling pointing out several deficiencies in the petition and the showing in support of it. The tentative was to continue the hearing to allow Petitioner to submit the necessary information. The court ultimately continued the hearing for that purpose and to allow Payee to discuss the transaction with Petitioner. In connection with the current hearing, Payee has submitted a request for the court to deny the petition. Payee also has submitted a declaration and supporting exhibits showing how she has exercised her right to cancel the transaction under the governing documents. Based on Payee's expressed desire to cancel the transaction and her demonstrated exercise of her right to do so under the parties' agreement, the petition is **DENIED**. Nonetheless, counsel for Petitioner is ordered to appear at the hearing to address why this case was not dismissed or the petition withdrawn in light of Payee's clearly expressed desire to cancel the transaction. The clerk will be directed to give notice of the court's order.
7.	***In Re: CBC Settlement Funding, LLC*** *2026-01559765*	Before the court is the continued hearing on the petition of petitioner CBC Settlement Funding LLC (Petitioner) for court approval of proposed transfer of one lump sum payment payee Brandon Thompson (Payee) is scheduled to receive under a structured settlement. As more fully set forth below, the petition is **GRANTED**.

		Under the proposed transfer, Payee would transfer to Petitioner the rights to one lump payment of $375,000 due on July 6, 2046. The payment has a discounted present value of $150,338.27. In exchange for transferring the right to receive this payment, Payee would receive a present, lump sum payment of $72,000, which represents 48 percent of the payment's present value and equates to an equivalent interest rate of 8.5 percent if Payee were to take a loan. The court has received and reviewed the following documents and all exhibits and documents attached thereto: (1) the petition for approval of transfer of structured settlement payment rights (ROA 2); (2) the declarations of Payee in support of the petition (ROA 2, Ex. 4 and ROA 14); and (3) the various notices of hearing (ROA 10, 16). Based on those documents and exhibits, the court makes the following findings as required by Insurance Code sections 10137 and 10139.5(a): (1) The transfer is fair and reasonable and in the best interest of Payee, taking into account the welfare and support of his dependents (none); (2) Payee has been advised in writing by Petitioner to seek independent professional advice regarding the transfer and has either received that advice or knowingly waived, in writing, the opportunity to receive the advice; (3) Petitioner has provided Payee with a disclosure form that complies with Insurance Code section 10136, and the transfer agreement complies with Insurance Code sections 10136 and 10138; (4) The transfer does not contravene any applicable statute or the order of any court or other government authority and otherwise complies with the requirements of Insurance Code section 10134, et seq.; (5) Payee understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Insurance Code section 10136; and (6) Payee understands and does not wish to exercise her right to cancel the transfer agreement. Based on the foregoing, the petition is **GRANTED**. Petitioner's counsel is ordered to submit a proposed order approving the transfer consistent with the requirements of Insurance Code section 10134 et seq., and to give notice of this ruling.
8.	***Burke vs. Clear Vision Financial, LLC***	Before the court is the motion of petitioners Tina Burke and Christopher Karalis (collectively, Petitioners) for (1) an order enforcing March 26, 2026 order compelling payment of arbitration fees, (2) an order to show cause re contempt,

	2025-01529480	and (3) an award of attorney fees and costs incurred in enforcing the court's order. This relief is sought against respondent Clear Vision Financial, LLC dba Liberty 1 Financial (Respondent). As more fully set forth below, the motion is **GRANTED IN PART** and **DENIED IN PART**. On March 19, 2026, the court granted Petitioner's motion for an order pursuant to Code of Civil Procedure section 1281.98, subdivision (b), for an order compelling Respondent to pay the fees and costs of the arbitration required by the arbitration agreement Respondent drafted as Petitioners' employer. On March 26, 2026, the court signed an order requiring Respondent pay the arbitration fees to JAMS no later than 30 calendar days from the date the signed order was served. Petitioners bring this motion because Respondent has not paid the fees as ordered. Respondent acknowledges it has not paid the arbitration fees, but nonetheless argues this motion should be denied because Respondent has appealed the order requiring it to pay the arbitration fees and therefore the order is automatically stayed. Respondent also argues the motion should be denied because it lacks the financial ability to pay the arbitration fees required for the separate arbitrations with Petitioner and numerous other former employees, and therefore any violation is not willful. Petitioners argue the appeal does not affect the enforceability of the order because the order under section 1281.98 requiring Respondent to pay the arbitration fees is not an appealable order. Although there appears to be no reported California case addressing the appealability of such an order under section 1281.98, the court concludes the order is appealable under the collateral order doctrine. Under that doctrine, an exception to the one final judgment rules exists where there is a final determination on a collateral matter distinct and severable from the general subject of the litigation, and the determination requires the aggrieved party to immediately pay money or perform some other act. (*Lachkar v. Lachkar* (1986) 182 Cal.App.3d 641, 645, fn. 1, overruled by statute on a different issue as stated in *Benjamin, Weill & Mazer v. Kors* (2011) 195 Cal.App.4th 40; *Acosta v. Kerrigan* (2007) 150 Cal.App.4th 1124, 1128, fn. 4.) The collateral order doctrine has been applied in the arbitration context to allow an appeal from an order requiring a party to pay an arbitration filing fee. (*Spence v. Omnibus Industries* (1975) 44 Cal.App.3d 970.) In *Spence*, the Court of Appeal held the order requiring a party to pay the arbitration filing fee was appealable as a collateral order

		directing the payment of money even though orders compelling arbitration generally are not appealable. (*Id*. at p. 976.) Obviously, the ultimate determination regarding appealability will be made by the Court of Appeal. Respondent argues the court cannot grant any of the relief sought by this motion because their appeal from the court's order gave rise to an automatic stay preventing enforcement. Respondent equates an order under section 1281.98, subdivision (b), to pay arbitration fees with a mandatory injunction, which is automatically stayed on appeal without the need to post a bond. Again, there appears to be no California authority directly addressing this point, but the court concludes there is no stay absent the posting of a bond pursuant to Code of Civil Procedure section 917.1, subdivision (a)(1). That section provides, "Unless an undertaking is given, the perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the judgment or order is for any of the following: [¶] (1) Money or the payment of money, whether consisting of a special fund or not, and whether payable by the appellant or another party to the action." An order under section 1281.98, subdivision (b), compelling an employer to pay arbitration fees is an order directing the payment of money. It commands the employer to pay a specific sum to the arbitration provider or as otherwise directed by the trial court. Here, Respondent has not posted a bond and therefore the court concludes there is no stay. Having addressed these foundational arguments by the parties, the court now addresses the specific relief sought by Petitioners. First, Petitioners ask the court to issue another order compelling Respondent to pay the arbitration fees—this time within 48 hours. The court **DENIES** this request. There is no need for an additional order compelling Respondent to pay the arbitration fees. Petitioners already have an order compelling Respondent to pay the fees. An additional order would be redundant. Indeed, what is the court to include in such an order . . . a statement the court really means it this time? Petitioners have not identified any reason the current order is not sufficient. Petitioners next seek an order to show cause re contempt for Respondent's failure to comply with the earlier order. Given the alleged violation of the court's order did not take place in the court's presence, this would be an indirect contempt. Indirect contempt proceedings are initiated by

submitting an affidavit or declaration to the court setting forth "the facts constituting the contempt." (Code Civ. Proc., § 1211, subd. (a).) This affidavit or declaration is like a complaint in a criminal case; it frames the issues and must charge facts which show a contempt has been committed. (*Reliable Enterprises, Inc. v. Superior Court* (1984) 158 Cal.App.3d 604, 616.) A sufficient affidavit or declaration is a jurisdictional prerequisite to a contempt proceeding and without one any contempt order is void. (*In re Koehler* (2010) 181 Cal.App.4th 1153, 1169.) The party seeking contempt must plead each element of the contempt with facts, not conclusions. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group 2025) at 9:714.)

The elements that must be factually alleged to support issuance of an OSC re contempt are "(1) the rendition of a valid order, (2) actual knowledge of the order, (3) ability to comply, and (4) willful disobedience." (*Conn v. Superior Court* (1987) 196 Cal.App.3d 774, 784.)

The issuance of an order to show cause re contempt commences a separate action on the contempt charges entitling the accused to a full and fair hearing that satisfies due process. (*In re. M.R.* (2013) 220 Cal.App.4th 49, 58.) Among other things, that requires the order to show cause, the affidavit, and all other supporting documents to be personally served on the party to be held in contempt. (*Koehler v. Superior Court* (2010) 181 Cal.App.4th 1153, 1169; Code Civ. Proc., §§ 1015, 1016.) A court lacks jurisdiction to proceed with a contempt hearing unless an affidavit and order to show case are personally served on an accused contemner; the purpose of personal service is to give the court a basis for asserting personal jurisdiction over the accused contemner. (*In re. M.R.* (2013) 220 Cal.App.4th 49, 58; *Cedars-Sinai Imaging Medical Group v. Superior Court* (2000) 83 Cal.App.4th 1281, 1287 & fn. 6.)

The facts set forth in the motion and supporting declaration, as well as the reasonable inferences drawn from those facts, adequately establish the four elements of contempt and support the issuances of an order to show cause. Moreover, Code of Civil Procedure section 1281.99, subdivision (b)(3) authorizes contempt for violations of an order under section 1281.98, subdivision (b). In opposition, Respondent does not challenge the adequacy of Petitioners' declaration. Rather, Respondent contends an order to show cause should not be issued because its conduct is not willful. Respondent asserts it is not able to

		pay the arbitration fees required for the arbitrations with Petitioners and several other former employees. The evidence Respondent presents, however, is not sufficient to establish its inability. Respondent presents evidence regarding its net losses and declining revenues, but a more complete picture is necessary. Moreover, an opposition to the request for an order to show cause is not the time to disprove willfulness or to establish an inability to comply. Rather, the evidentiary hearing on the order to show cause is where those issues are to be heard and decided. The declaration/affidavit is sufficient and therefore the request for an order to show cause is **GRANTED** as more fully set forth below. Finally, Petitioners again request attorney fees as a sanction under Code of Civil Procedure section 128.5. That request is again **DENIED WITHOUT PREJUDICE**. Respondent's conduct in disregarding the court's order have not yet been proven to be in bad faith or solely for purposes of delay. Moreover, there may be other more appropriate authority for the sanctions request, such as Code of Civil Procedure section 1218, subdivision (a), addressing contempt, or Code of Civil Procedure section 1281.99. Based on the foregoing, the court will issue an order to show cause directing Respondent to appear on **Thursday, October 22, 2026, at 2:00 p.m., in Department C23**,to show cause as to why it should not be held in contempt of court for failing to comply with the courts March 19 and 26, 2026 orders. Respondent's evidentiary objections (ROA 98) are **OVERRULED**. Petitioners are ordered to give notice and submit a proposed order to show cause consistent with this ruling.
9.	***Blain vs. Clear Vision Financial, LLC*** *2025-01529475*	Before the court is the motion of petitioners Nicole Blain and Sylvia Melkonian (collectively, Petitioners) for (1) an order enforcing March 26, 2026 order compelling payment of arbitration fees, (2) an order to show cause re contempt, and (3) an award of attorney fees and costs incurred in enforcing the court's order. This relief is sought against respondent Clear Vision Financial, LLC dba Liberty 1 Financial (Respondent). As more fully set forth below, the motion is **GRANTED IN PART** and **DENIED IN PART**. On March 19, 2026, the court granted Petitioner's motion for an order pursuant to Code of Civil Procedure section 1281.98, subdivision (b), for an order compelling Respondent to pay the fees and costs of the arbitration

		required by the arbitration agreement Respondent drafted as Petitioners' employer. On March 26, 2026, the court signed an order requiring Respondent pay the arbitration fees to JAMS no later than 30 calendar days from the date the signed order was served. Petitioners bring this motion because Respondent has not paid the fees as ordered. Respondent acknowledges it has not paid the arbitration fees, but nonetheless argues this motion should be denied because Respondent has appealed the order requiring it to pay the arbitration fees and therefore the order is automatically stayed. Respondent also argues the motion should be denied because it lacks the financial ability to pay the arbitration fees required for the separate arbitrations with Petitioner and numerous other former employees, and therefore any violation is not willful. Petitioners argue the appeal does not affect the enforceability of the order because the order under section 1281.98 requiring Respondent to pay the arbitration fees is not an appealable order. Although there appears to be no reported California case addressing the appealability of such an order under section 1281.98, the court concludes the order is appealable under the collateral order doctrine. Under that doctrine, an exception to the one final judgment rules exists where there is a final determination on a collateral matter distinct and severable from the general subject of the litigation, and the determination requires the aggrieved party to immediately pay money or perform some other act. (*Lachkar v. Lachkar* (1986) 182 Cal.App.3d 641, 645, fn. 1, overruled by statute on a different issue as stated in *Benjamin, Weill & Mazer v. Kors* (2011) 195 Cal.App.4th 40; *Acosta v. Kerrigan* (2007) 150 Cal.App.4th 1124, 1128, fn. 4.) The collateral order doctrine has been applied in the arbitration context to allow an appeal from an order requiring a party to pay an arbitration filing fee. (*Spence v. Omnibus Industries* (1975) 44 Cal.App.3d 970.) In *Spence*, the Court of Appeal held the order requiring a party to pay the arbitration filing fee was appealable as a collateral order directing the payment of money even though orders compelling arbitration generally are not appealable. (*Id*. at p. 976.) Obviously, the ultimate determination regarding appealability will be made by the Court of Appeal. Respondent argues the court cannot grant any of the relief sought by this motion because their appeal from the court's order gave rise to an automatic stay preventing enforcement. Respondent equates an order under section 1281.98, subdivision (b), to pay arbitration fees

		with a mandatory injunction, which is automatically stayed on appeal without the need to post a bond. Again, there appears to be no California authority directly addressing this point, but the court concludes there is no stay absent the posting of a bond pursuant to Code of Civil Procedure section 917.1, subdivision (a)(1). That section provides, "Unless an undertaking is given, the perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the judgment or order is for any of the following: [¶] (1) Money or the payment of money, whether consisting of a special fund or not, and whether payable by the appellant or another party to the action." An order under section 1281.98, subdivision (b), compelling an employer to pay arbitration fees is an order directing the payment of money. It commands the employer to pay a specific sum to the arbitration provider or as otherwise directed by the trial court. Here, Respondent has not posted a bond and therefore the court concludes there is no stay. Having addressed these foundational arguments by the parties, the court now addresses the specific relief sought by Petitioners. First, Petitioners ask the court to issue another order compelling Respondent to pay the arbitration fees—this time within 48 hours. The court **DENIES** this request. There is no need for an additional order compelling Respondent to pay the arbitration fees. Petitioners already have an order compelling Respondent to pay the fees. An additional order would be redundant. Indeed, what is the court to include in such an order . . . a statement the court really means it this time? Petitioners have not identified any reason the current order is not sufficient. Petitioners next seek an order to show cause re contempt for Respondent's failure to comply with the earlier order. Given the alleged violation of the court's order did not take place in the court's presence, this would be an indirect contempt. Indirect contempt proceedings are initiated by submitting an affidavit or declaration to the court setting forth "the facts constituting the contempt." (Code Civ. Proc., § 1211, subd. (a).) This affidavit or declaration is like a complaint in a criminal case; it frames the issues and must charge facts which show a contempt has been committed. (*Reliable Enterprises, Inc. v. Superior Court* (1984) 158 Cal.App.3d 604, 616.) A sufficient affidavit or declaration is a jurisdictional prerequisite to a contempt proceeding and without one any contempt order is void. (*In re Koehler* (2010) 181 Cal.App.4th 1153, 1169.) The

		party seeking contempt must plead each element of the contempt with facts, not conclusions. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group 2025) at 9:714.) The elements that must be factually alleged to support issuance of an OSC re contempt are "(1) the rendition of a valid order, (2) actual knowledge of the order, (3) ability to comply, and (4) willful disobedience." (*Conn v. Superior Court* (1987) 196 Cal.App.3d 774, 784.) The issuance of an order to show cause re contempt commences a separate action on the contempt charges entitling the accused to a full and fair hearing that satisfies due process. (*In re. M.R.* (2013) 220 Cal.App.4th 49, 58.) Among other things, that requires the order to show cause, the affidavit, and all other supporting documents to be personally served on the party to be held in contempt. (*Koehler v. Superior Court* (2010) 181 Cal.App.4th 1153, 1169; Code Civ. Proc., §§ 1015, 1016.) A court lacks jurisdiction to proceed with a contempt hearing unless an affidavit and order to show case are personally served on an accused contemner; the purpose of personal service is to give the court a basis for asserting personal jurisdiction over the accused contemner. (*In re. M.R.* (2013) 220 Cal.App.4th 49, 58; *Cedars-Sinai Imaging Medical Group v. Superior Court* (2000) 83 Cal.App.4th 1281, 1287 & fn. 6.) The facts set forth in the motion and supporting declaration, as well as the reasonable inferences drawn from those facts, adequately establish the four elements of contempt and support the issuances of an order to show cause. Moreover, Code of Civil Procedure section 1281.99, subdivision (b)(3) authorizes contempt for violations of an order under section 1281.98, subdivision (b). In opposition, Respondent does not challenge the adequacy of Petitioners' declaration. Rather, Respondent contends an order to show cause should not be issued because its conduct is not willful. Respondent asserts it is not able to pay the arbitration fees required for the arbitrations with Petitioners and several other former employees. The evidence Respondent presents, however, is not sufficient to establish its inability. Respondent presents evidence regarding its net losses and declining revenues, but a more complete picture is necessary. Moreover, an opposition to the request for an order to show cause is not the time to disprove willfulness or to establish an inability to comply. Rather, the evidentiary hearing on the order to show cause is where those issues are to be heard and decided. The

		declaration/affidavit is sufficient and therefore the request for an order to show cause is **GRANTED** as more fully set forth below. Finally, Petitioners again request attorney fees as a sanction under Code of Civil Procedure section 128.5. That request is again **DENIED WITHOUT PREJUDICE**. Respondent's conduct in disregarding the court's order have not yet been proven to be in bad faith or solely for purposes of delay. Moreover, there may be other more appropriate authority for the sanctions request, such as Code of Civil Procedure section 1218, subdivision (a), addressing contempt, or Code of Civil Procedure section 1281.99. Based on the foregoing, the court will issue an order to show cause directing Respondent to appear on **<u>Thursday, October 22, 2026, at 2:00 p.m., in Department C23</u>**, to show cause as to why it should not be held in contempt of court for failing to comply with the courts March 19 and 26, 2026 orders. Respondent's evidentiary objections (ROA 99) are **OVERRULED**. Petitioners are ordered to give notice and submit a proposed order to show cause consistent with this ruling.
10.	***Martinez vs. FEIZ-EKBATANI*** *2016-00884642*	Before the court is the Motion to Enforce Settlement Agreement filed by plaintiff Gerald Martinez (Plaintiff) against defendants Mehrdad Feiz-Ekbatani, Airmobile Technologies, Inc., and Coupzilla, Inc. (collectively, Defendants). As more fully set forth below, the motion is **DENIED**. This motion is brought pursuant to Code of Civil Procedure section 664.6. Plaintiff and Defendants have entered into three different agreements to resolve their disputes. The First Agreement was entered into February 21, 2017. The Second Agreement was entered into June 1, 2018. The Third Agreement was entered into March 3, 2025. The Third Agreement is referred to as a "first amendment to the second settlement agreement" and attached as Exhibit 4 to the Hall Declaration. Here, the motion states, "Plaintiff hereby moves the Court for entry of a money judgment against the Revised Defendants in the amount of $89,000 plus an award of attorneys' fees and costs in the amount of $9,864 in accordance with the terms of the Amendment. (Hall Decl., ¶¶ 16, 17.) [¶] Revised Defendants clearly failed to adhere to the payment schedule as set forth in the Amendment, which provides for the payment of $174,000

		from Defendants to Plaintiff on a definite schedule." (Motion at p.5, lns. 3-8.) Plaintiff further states Defendants partially performed under the Third Agreement but then defaulted. (Hall Declaration ¶11.) Plaintiff also states Defendants failed to comply with his demand for payment under the terms of the Third Agreement. (Hall Declaration, ¶13, Exh. 5.) The court dismissed this case without prejudice on August 31, 2018, after Plaintiff filed a notice of settlement of entire case and then all parties failed to appear at two separate order to show cause hearings regarding the dismissal of settled case. Code of Civil Procedure section 664.6 creates an expedited procedure for the enforcement of settlements reached among the "parties to pending litigation." It does not apply to agreements reached before an action is filed or after judgment has become final. (*Kirby v. Southern California Edison Co.* (2000) 78 Cal.App.4th 840, 845; *Walton v. Mueller* (2009) 180 Cal.App.4th 161, 172.) Section 664.6 only applies to agreements reached during pending litigation. This case was not pending when the parties entered into the Third Agreement on March 3, 2025, and therefore section 664.6 does not apply. Section 664.6, subdivision (e), is of no assistance to Plaintiff because it was enacted years after the court dismissed this case. Moreover, it addresses the question of retention of jurisdiction, it does not address the requirement that the agreement to be enforced be reached among parties to pending litigation. Based on the foregoing, the motion is **DENIED**. In denying the motion, the court does not express any opinion on the enforceability of the Third Agreement in general. The court simply concludes section 664.6 is not available to enforce the Third Agreement because this case was not pending when the parties reached that agreement. Plaintiff is free to seek to enforce the Third Agreement through a new lawsuit based on that agreement. Plaintiff's counsel is ordered to give notice of this ruling.
11.	***Shalikar vs. BMW of North America, LLC*** *2025-01470449*	Before the court is the motion for attorney fees filed by plaintiffs Ahmad S. Shalikar and Malalai Shalikar (collectively, Plaintiffs) seeking attorney fees, costs, and expenses incurred from case initiation through settlement and including the fee motion. As more fully set forth below, the motion is **GRANTED,** and Plaintiffs are awarded attorney fees in the total amount of $16,410.00 and costs

and expenses in the amount of $1,763.36 against defendant BMW of North America, LLC (Defendant).

The parties settled this Song-Beverly case before trial with Defendant agreeing to pay reasonable attorney fees, costs and expenses to Plaintiff as the prevailing party. As such, there is no dispute among the parties as to Plaintiffs’ right to recover their attorney fees, costs, and expenses. Rather, the dispute focuses on what is the reasonable amount of attorney fees, costs, and expenses.

By this motion, Plaintiffs seek a total of $25,650.00 in attorney fees, which is comprised of $17,100.00. in attorney fees (including time spent preparing this motion) and a 1.5 lodestar multiplier in the amount of $8,550.00. (See Wirtz Reply Decl. ¶ 3, Exh. 11.) Plaintiffs also request costs and expenses in the amount of $1,763.36.

The Song-Beverly Act provides for attorney fees, costs, and expenses to the prevailing party in a lemon law case: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).)

“Determining a reasonable attorney fee award in Song-Beverly Act cases ‘“ordinarily begins with the ‘lodestar,’ [which is] the number of hours reasonably expended multiplied by the reasonable hourly rate.”’ [Citation.] The lodestar may ‘then be adjusted based on factors specific to the case, in order to fix the fee at the fair market value of the legal services provided.’ [Citation.] The lodestar method ‘anchors the trial court’s analysis to an objective determination of the value of the attorney’s services,’ and thus ensures the amount awarded is not arbitrary. [Citation.]” (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157-1158 (*Tidrick*).)

“The Song-Beverly Act’s attorney fee provision ‘“requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited, and the results achieved. If the time expended

		or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of 'showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," litigation," and were "reasonable in amount."'" [Citation.]" [Citation.]" (*Tidrick*, *supra*, 112 Cal.App.5th at p. 1158.) *<u>Hourly Rates</u>:* "The reasonable hourly rate is that prevailing in the community for similar work." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; see also *Chacon v. Litke* (2010) 181 Cal.App.4th 1234, 1260 ["reasonable market value" of counsel's services is measure of reasonable hourly rate].) The relevant "community" is generally based on where the services were rendered, i.e., where the court is located. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242-1243.) "Accordingly, the reasonable hourly rate in this case is that charged by consumer attorneys practicing in the local legal community in Orange County." (*Tidrick*, *supra*, 112 Cal.App.5th at p. 1157.) The court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate. (*Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009; *569 E. County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 437.) The court may consider various other factors when determining a reasonable hourly rate, including the attorney's skill and experience, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates. (*Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632.) Here, Plaintiff seeks hourly rates of $600 for senior trial attorneys Amy R. Rotman and Jessica R. Underwood; $450 for associate Susanna Gonzales-McCaulley; and $250 and $300 for the paralegals. Based on the evidence provided by both parties, and on the court's own experience, the court finds the hourly rates sought are commensurate with the respective attorney's level of skill and experience and consistent with the prevailing rates for consumer attorneys practicing in Orange County in Song-Beverly cases. *<u>Hours Expended</u>:* "[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (*Horsford v Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396; *Raining*

		Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1367 [declarations of counsel also are "sufficient to meet the burden of establishing the reasonableness of the fees incurred, without the need to produce copies of counsel's detailed billing statements"].) To oppose a showing of a fee request supported by declarations describing the efforts taken with billing records to establish the hours of work, a party may either "attack the itemized billings with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable." (*Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Assoc.* (2008) 163 Cal.App.4th 550, 563-564.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Id*. at p. 564.) "When confronted with hundreds of pages of legal bills, trial courts are not required to identify each charge they find to be reasonable or unreasonable, necessary or unnecessary." (*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 101.) "The party opposing the fee award can be expected to identify the particular charges it considers objectionable. A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections." (*Ibid*.) Fee award amounts are matters within the trial court's discretion because the "trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) Here, Plaintiff seeks attorney fees in the amount of $17,100.00 (which is based on 43.8 hours of time spent from inception through the preparation of this motion), plus an additional lodestar multiplier in the amount of $8,550.00. Defendant argues time spent preparing "templative work" is excessive. A review of the billing records, however, shows the amount of time expended on each task is generally commensurate with the task, and not excessive. The number of hours sought for the individual tasks reflect fewer hours are being sought than would be appropriate if the work was started from scratch without templates.

		All time sought was not reasonably expended, however. The court reduces the fee award by $690.00 for the following time entries that are reflective of unreasonably incurred fees or for clerical tasks that are typically subsumed in overhead: 03/17/25 (0.1); 03/26/25 (0.5); 04/01/25 (0.1); 04/29/25 (0.1); 08/13/25 (0.1); 08/13/25 (0.1); 08/14/25 (0.1); 08/14/25 (0.1); 08/15/25 (0.1); 06/04/26 (0.3); 07/13/26 (0.1); 08/06/26 (0.3); 08/13/26 (0.1); and 11/13/26 (0.1 [anticipated].). The court therefore will deduct a total of $690.00 from the request of $17,100.00, which leads to a lodestar $16,410.00. The court does not find any circumstances that warrant adjustment, either upward or downward. <u>*Costs and Expenses*</u>*:* Plaintiffs seek a total of $1,763.36 in costs and expenses. Under Civil Code section 1794, subdivision (d), as the prevailing party, Plaintiffs are entitled to all "costs and expenses" that were reasonably incurred in prosecuting the case, including items beyond the statutory costs enumerated in Code of Civil Procedure section 1033.5. (*Jensen v. BMW of North Am.* (1995) 35 Cal.App.4th 112, 137-138.) Defendant does not dispute the reasonableness of the costs and expenses Plaintiffs identified. The court finds all such costs and expenses to be reasonable and to award costs in the requested amount of $1,763.36. <u>*Total Award*</u>*:* When the amount of fees awarded ($16,410.00) is added to the costs and expenses awarded ($1,763.36) the total award is $18,173.36. Based on the foregoing, the motion for attorney fees, costs, and expenses is **GRANTED**, and Plaintiffs are awarded a total of $18,173.36 against Defendant. Plaintiffs' counsel is ordered to give notice of this ruling.
12.	***Sams vs. Castillo*** *2026-01537470*	Before the court is the amended petition for decedent's cremated remains filed by petitioner Michele Sams (Petitioner) on February 17, 2026. Petitioner filed the original petition commencing these proceedings on January 2, 2026. By the petition, Petitioner seeks a court order regarding the disposition of the remains of her alleged biological father, Billy Joe Hill (Decedent). Petitioner alleges respondent Lindsie Castillo (Respondent) also is a biological daughter of Decedent, and Respondent currently has possession of Decedent's cremated remains. Specifically, Petitioner seeks a court order (1) determining Petitioner has an equal right to the disposition of Decedent's remains and possession of

		one-half of Decedent's remains, (2) ordering Respondent to release one-half of Decedent's remains to Petitioner within 30 days, and (3) awarding Petitioner $1,000. This is the third hearing on Petitioner's amended petition. The court previously held hearings on April 9, 2026, and May 14, 2026. The court continued each of those hearings because Petitioner failed to file a proof of service showing Petitioner had served Respondent with any of the documents filed in this case. The court also indicated Petitioner failed to provide any authority authorizing the relief she seeks. The court encouraged Petitioner to seek legal counsel to assist in ensuring Respondent is properly served and in finding legal authority to authorizing the relief requested. On July 7, 2026, Petitioner filed a proof of service stating a registered process server served Respondent with the Summons, Civil Case Coversheet, Amended CM-010 Civil Case Coversheet, and Sum-100 Amended Summons on June 1, 2026. The proof of service, however, fails to show Respondent was served either the original or amended petition in this case or with notice of today's hearing. Moreover, Petitioner has not identified any authority that would warrant granting the relief requested. Although Health & Safety Code Section 7100 states the children of the deceased have a right to the ashes, it does not provide authority for the court to order division of the ashes after they have been distributed to one child. Petitioner cites no other authority in support of her assertion the remains should be divided. Assertions unsupported by legal authority are presumed to lack merit. (*Atchley v. City of Fresno* (1984) 151 Cal.App.3d 635.) Furthermore, there also is no evidence to show Respondent actually has the cremated remains or how she allegedly obtained those remains Petitioner has been provided multiple opportunities to address the foregoing issues, but has failed to do so. Accordingly, the petition is **DENIED**. The clerk is directed to give notice of this ruling
13.	***National Funding, Inc. vs. BGRT, LLC*** *2019-01084008*	Before the court is the hearing on the claim of exemption presented by judgment debtor Charles Harney (Debtor) and the opposition to claim of exemption filed by judgment creditor National Funding, Inc. (Creditor). As set forth more fully below, the court finds the funds in Debtor's Chase Bank account currently being held by the San Diego

		County Sheriff's Department in the amount of $1,023.29 is not exempt and thus the claim of exemption is **DENIED**. At the hearing on a claim of exemption, the court must make an order determining whether the property is exempt, in whole or in part. (Code Civ. Proc., § 703.580, subds. (c), (d)(1).) The court clerk must promptly transmit a certified copy of the order to the levying officer, whereupon the levying officer must release the property or apply it to satisfy the judgment in compliance with the order. (Code Civ. Proc., § 703.580, subd. (e).) The claimant bears the burden of proof at the hearing on the exemption claim. (Code Civ. Proc., § 703.580, subd. (b); *O'Brien v. AMBS Diagnostics, LLC* (2016) 246 Cal.App.4th 942, 948.) The exemption statutes, however, are liberally construed in favor of the claimant. (*Independent Bank v. Heller* (1969) 275 Cal.App.2d 84, 88.) Here, Debtor fails to cite any statutory provision supporting his claim of exemption and simply states his personal income is needed to pay rent, food, and other living expenses. He states no facts in support of his claim of exemption other than numbers set forth in in financial statement attached to the claim of exemption. To the extent Debtor relies on Code of Civil Procedure section 704.070, which exempts earnings paid to the judgment debtor within 30 days before a writ of execution is levied, Debtor fails to trace any funds claimed to be exempt based on their origin. (Code Civ. Proc., § 703.080, subd. (b).) To the extent he relies on Code of Civil Procedure section 704.225, which exempts money in the judgment debtor's deposit account to the extent necessary for the support of the judgment debtor (and spouse/dependents, if any), Debtor failed to show the funds currently being held by the Sheriff are necessary for his support. Indeed, Debtor's financial statement states his monthly take home income exceeds his monthly expenses by $452 and he identifies a brokerage account with $26,000 and a checking account with $5,000 separate and apart from the $59,000 he identifies in "Managed Retirement." Based on the foregoing, the claim of exemption is **DENIED**. Creditor's counsel shall give notice of this ruling.
14.	***Kurtin vs. Elieff***	Before the court is the motion of plaintiff Todd Kurtin (Plaintiff) for an award of attorney fees on appeal, filed on January 6, 2020 (ROA 2927). A status conference also is on

	2007-00100307	calendar relating to the bankruptcy petition filed by defendant Bruce Elieff (Defendant). Based on the declaration of Plaintiff's counsel, Benjamin Sosnick, filed on July 30, 2026, as ROA 3132, the stay of this matter must remain based upon the pendency of Defendant's bankruptcy petition. The motion and the status conference therefore are **CONTINUED TO THURSDAY, FEBRUARY 4, 2027, AT 2:00 P.M., IN DEPARTMENT C23**. Plaintiff's counsel is ordered to file a declaration regarding the status of Defendant's bankruptcy proceeding no later than 10 court days before the continued hearing date which should include information regarding the stage of the proceedings, upcoming hearings, and any estimate regarding resolution. Assuming the stay is lifted, the attorney fee motion likely will not proceed on the February 4, 2027, but rather will be set for a future hearing date and the possibility of further briefing, if necessary. Plaintiff's counsel is further ordered to give notice of this ruling.
15.	***Family Investment Company, Inc. vs. Mach-1 Autogroup*** *2009-00126504*	Before the court are the following two motions filed on April 17, 2026: (1) motion by judgment debtor Marc Spizzirri (Marc) to quash purported deposition subpoena on third party Glass Ratner Advisory & Capital Group, LLC (Glass Ratner); request for monetary sanctions, and (2) motion by judgment debtor Candace Spizzirri (Candace; together with Marc collectively referred to as Judgment Debtors) to quash purported deposition subpoena on third party Gnome Road Publishing (Gnome Road); request for monetary sanctions. As more fully set forth below, both motions are **GRANTED** and the subpoenas served on Glass Ratner and Gnome Road are ordered **QUASHED**. Judgment Debtors are correct the subpoenas at issue, which are for pre-trial discovery, were not properly issued in this post-judgment context. The Civil Discovery Act applies to discovery in postjudgment enforcement proceedings only to the extent provided in Code of Civil Procedure sections 708.110 to 708.130. (*Shrewsbury Mgmt., Inc. v. Superior Court* (2019) 32 Cal.App.5th 1213, 1223.) Under section 708.130, that includes the use of a subpoena duces tecum to access relevant documents, in the same manner as at trial. (*Id*. at pp. 1223-1225.) But the subpoenas at issue are not subpoenas for trial – they are for pre-trial discovery. (ROAs 2031 and 2032, at Exh. 1.) As they fail to meet the requirements under Code of Civil Procedure section 708.030, they are invalid here.

		In addition, as Judgment Debtors' counsel was not served with the subpoenas (ROAs 2041 and 2047, at ¶¶ 4, 5), notice for the subpoenas also was defective. The motions to quash are therefore **GRANTED**. Both sides' sanctions requests are **DENIED**. Although Judgment Debtors are the prevailing parties on these motions, neither included a proper sanctions request in their notice of motion to identify against whom sanctions are sought, in what amount, and on what authority. Assertions unsupported by legal authority are presumed to lack merit. (*Atchley v. City of Fresno* (1984) 151 Cal.App.3d 635, 647.) All requests for sanctions on these motions are therefore **DENIED**. Counsel for Judgment Debtors is ordered to give notice of these rulings.
16.	***Kaiser Foundation Health Plan vs. Sharp Memorial Hospital*** *2026-01566981*	Before the court is the continued hearing on three motions the parties have filed seeking to seal a variety of documents relating to the petition to confirm the underlying arbitration award and the opposition thereto. **<u>Respondents' Motion to Seal</u>** On July 9, 2026, the court first heard the motion of respondents Sharp Memorial Hospital, Sharp Coronado Hospital & Healthcare Center, Sharp Chula Vista Medical Center, and Grossmont Hospital Corporation dba Sharp Grossmont Hospital (collectively, Respondents) to seal portions of the opposition brief and supporting documents they filed in response to the petition to confirm the arbitration award filed by petitioner Kaiser Foundation Health Plan (Petitioner). At that time, the court continued the motion to today because (1) Respondents had not filed under seal or otherwise lodged unredacted versions of the documents they sought to seal, and (2) the court was not convinced the proposed redactions/sealing was sufficiently narrowly tailored to meet the requirements of the Rules of Court. Respondents have now filed some supplemental documents in support of their motion to seal. First, they have filed a sealed version of the declaration of Daron L. Tooch in support of the opposition to the petition to confirm that includes the Tooch declaration and the exhibits thereto without any redactions. Second, they have provided a supplemental declaration of David J. Tassa that attaches a new proposed, public version of the Tooch declaration. The new Tooch declaration now includes many of the exhibits to his declaration that were omitted from the original Tooch

		declaration. These exhibits now have proposed redactions instead of the wholesale sealing of all exhibits. Although this is significant progress the court still is not convinced the proposed redactions are sufficiently narrowly tailored. Moreover, the new proposal still seeks to seal the entire Exhibit A to the Tooch declaration and that court is not convinced that is appropriate. The court also is confused. The body of the Tooch declaration says an agreement with a certain title is attached as Exhibit A, but the agreement attached as Exhibit A has an entirely different title. The court is not convinced it is appropriate to redact the name of the agreement as used in the body of the Tooch declaration. Finally, the court notes it still is not able to locate an unredacted version of Respondents' opposition to the petition to confirm. The court has a redacted version of the opposition (ROA 13), but it cannot locate an unredacted version. As such, not only can the court not rule on the motion to seal, it cannot rule on the petition because it lacks the complete opposition. From the court's review of Respondents' filings, it seems Respondents themselves do not believe all the proposed redactions or sealings are necessary, but rather are concerned that, if they are not overly inclusive in what they seek to seal, Petitioner may accuse them of breaching various agreements. **<u>Petitioner's Two Motions to Seal</u>** On July 23, 2026, the court first heard Petitioner's motions to seal (1) portions of the petition to confirm the arbitration award and (2) portions of the opposition to Respondents' request to vacate the award. At that time, the court noted Petitioner's efforts to limit its redactions to only portions of many documents, but the court nonetheless found the redactions to be overbroad. The court also noted it found the request to seal the entirety of some exhibits to be overbroad. Finally, the court noted Petitioner failed to file a proof of service showing either of its motions to seal was served on Respondents The court therefore continued the hearing on Petitioner's motions to today for Petitioner to file proofs of service. The court also invited Petitioner to revisit the scope of its proposed redactions. In response, Petitioner has filed proofs of service showing service of its motions on Respondents. Petitioner, however,

		has not filed any other response to the court's July 23, 2026 order. Counsel for all parties should appear at the hearing to discussion these motions. The court is inclined to continue the motions at a minimum, and potentially deny them outright. It sounds as though the parties may need to meet and confer as to the appropriate scope of any redactions because it appears some of Respondents' requests are based solely on concerns over Petitioner's reactions. The parties also will be ordered to file correlation tables that list by title every document that includes any redactions or sealing (e.g., the Tooch Declaration in support of the opposition to the petition to confirm [there is no need at this time to separately list each exhibit to the document]), the register of action (ROA) number for the public, redacted version of the document, and the ROA number for the sealed version of the document. This is essential not only to help the court rule on the motions to seal, but also on the underlying petition.
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